

Dirassat & Abhath
The Arabic Journal of Human
and Social Sciences



مجلة دراسات وأبحاث
المجلة العربية في العلوم الإنسانية
والاجتماعية

EISSN: 2253-0363
ISSN : 1112-9751

International and National Mechanisms in Combating Irregular Migration

الآليات الدولية والوطنية في مكافحة الهجرة غير الشرعية

Dr. Ouranader Rabah

Associate Professor-b- University of Continuing Education didouch mourad centr of annaba

د. وراء النادر رباح

أستاذ محاضر- ب- جامعة التكوين المتواصل ديدوش مراد مركز عنابة

ouranader.rabah@gmail.com

تاريخ القبول : 2025/09/03

تاريخ الاستلام: 2025/07/17

Abstract:

Algeria is currently confronting a significant proliferation of irregular migration, functioning both as a transit country and, increasingly, as a destination for settlement. This phenomenon has engendered numerous adverse repercussions across economic, social, cultural, security, and even religious spheres, posing a considerable threat to the nation's stability. Consequently, Algerian authorities, drawing upon international mechanisms and inspired by global experiences and efforts, have expedited the adaptation of their legal and regulatory frameworks and security apparatus to effectively counter this phenomenon and rapidly adapt to evolving dynamics, particularly those concerning the entry, residence, and movement of foreign nationals within the country's borders.

Keywords: Irregular Migration, Mechanisms, Migrants, Legislation, International Agreements.

الملخص:

تواجه الجزائر انتشارا رهيبا لظاهرة الهجرة غير الشرعية باعتبارها بلد عبور أي ترانزيت من جهة و بلد استقرار و إقامة من جهة ثانية صاحب هذه الظاهرة الكثير من الانعكاسات السلبية على جميع المستويات الاقتصادية ، الاجتماعية ، الثقافية و الأمنية و حتى الدينية أصبحت تشكل مصدر تهديد لاستقرار البلاد، مما دفع السلطات الجزائرية معتمدة على الآليات الدولية ومستلهمه من تجربتهم وجهودهم الإسراع في تكييف ترسانتها القانونية و التنظيمية و الآليات الأمنية لمجابهة الظاهرة و التأقلم في أسرع وقت مع المستجدات خاصة منها ما تعلق بدخول و إقامة و تنقل الأجانب في ربوع الوطن .

الكلمات المفتاحية: الهجرة غير الشرعية ، آليات ، المهاجرون ، التشريع ، اتفاقيات دولية

1.Introduction:

The 19th century witnessed significant advancements across all facets of life, particularly in the industrial and agricultural sectors, leading to an urgent demand for labor. This period was characterized by facilitating administrative procedures for mobility by receiving nations, coupled with the provision of suitable means of transportation. Concurrently, the proliferation of European commercial, military, and scientific expeditions into Africa and Asia, driven by the strategic objective of discovering new productive resources and conquering novel geographical frontiers to achieve economic supremacy and subsequent societal affluence, further fueled global movement¹.

The advent of the 20th century, particularly its first half, and the devastation of the two World Wars, resulted in substantial

human capital losses for European nations. The remaining workforce proved insufficient for post-war reconstruction, prompting these nations to actively recruit labor from North Africa and sub-Saharan African countries. This southward-to-northward migration was strictly regulated by northern societies, occurring as formalized migration with legal and social service provisions. However, as European labor markets became saturated, a shift occurred towards implementing stringent measures against migration in general, both regular and irregular, culminating in the adoption of strict security policies through the enforcement of new immigration laws.

It is noteworthy that this tightening of legal procedures aimed at curbing the escalation of legal immigration and the influx of undocumented workers proved inadequate in resolving the underlying issue. Instead, it arguably exacerbated the situation, transforming these nations into magnets for

prospective irregular migrants from diverse global regions. The number of countries serving as sources for irregular migrants increased to forty. Furthermore, irregular migration demonstrated a capacity to adapt to the evolving challenges and new measures implemented by official authorities in both host and source countries. Security-focused approaches, emphasizing enhanced enforcement, surveillance, and monitoring without addressing the deeper economic and social determinants, proved insufficient. Consequently, the phenomenon reasserted itself in novel forms and through multiple routes, challenging the measures adopted by official authorities in both labor-exporting countries, including Algeria, and labor-receiving countries. This situation underscores the significance of addressing irregular migration as a form of individual and collective infiltration across state borders and coastlines, requiring a robust and comprehensive response due to its negative implications for international and economic relations.

Research Problem:

Faced with this apparent inadequacy on both sides (source and destination countries), the following central question arises, constituting the core research problem of this article:

What legal means and mechanisms are capable of at least mitigating the escalation of this phenomenon, whether through stringent domestic measures or through bilateral or multilateral agreements, and the unification of capabilities to confront and deter irregular migration?

To address this question, it is essential to identify the actors involved in this cross-

border phenomenon, enabling each entity to assume its responsibilities and contribute to the formulation of appropriate solutions. This includes both the countries of origin for these migrants and the destination countries, without overlooking the transit countries that bear a significant burden of the phenomenon across multiple levels, including humanitarian (human rights), economic, social, political, and security dimensions.

The countermeasures employed manifest in various forms of action: internal national procedures, bilateral cooperation between two states, and finally, international and regional actions and solutions through treaties, conventions, and international understandings. Accordingly, this article is structured into three primary elements:

First: International and Regional Efforts in Addressing the Phenomenon

Second: National (Algerian) Efforts in Combating Irregular Migration

Conclusion

2. Actors Involved in Irregular Migration:

In demography, migration is defined as the movement of individuals or groups from one geographical area to another in pursuit of improved social, economic, religious, or political conditions. If this movement occurs within the borders of a single nation, it is termed internal migration. Conversely, if it transcends national boundaries to another country, it is classified as external or international migration.

Certain countries serve as transit points for migrants utilizing irregular pathways. Examples include:

- ✓ North African nations for migration flows from Africa towards Europe.

- ✓ Turkey for migrants originating from the Middle East and Eastern Europe.
- ✓ Egypt for migrants from Africa.
- ✓ Libya for migrants from the Maghreb region, Sudan, and Egypt².

Superficially, three primary actors can be identified, irrespective of the underlying motivations and objectives: receiving countries, source countries, and transit countries.

2.1. Receiving Countries:

Historically, the initial patterns of migration predominantly flowed from the Global North to the Global South, commencing with European exploratory voyages towards the New World. This was followed by political and military migrations undertaken by these European powers towards the southern Mediterranean and the interior of Africa, driven by the pursuit of new productive resources within the context of colonial competition and the ambition to conquer frontiers for societal affluence and economic dominance³.

Following the First and Second World Wars, which resulted in a novel global order, nations such as France, Britain, Germany, and Italy found themselves with depleted human capital and an insufficient workforce for reconstruction. Consequently, they initiated the recruitment of labor from Algeria, Tunisia, Morocco, and sub-Saharan African nations to facilitate anticipated economic growth. Given the facilitative measures extended to migrants, their numbers increased significantly, reaching a point of saturation where they exceeded the labor demands of the receiving countries. This intensification of competition with the local workforce was further exacerbated by the closure of coal

mines in France and Belgium, which had previously absorbed substantial numbers of migrant workers. This situation compelled European, or receiving, nations to contemplate strategies for curbing and limiting incoming migration. A review of events during the last three decades of the previous century, a pivotal period in reshaping migration patterns, reveals three interconnected and overlapping temporal phases:

a) Phase One (Pre-1958): This period was characterized by a significant labor deficit in European nations, prompting a competitive drive towards the Global South for recruitment. Southern migrants, understanding the dynamics of the northern labor markets, began to assert their rights and the rights of their children and families, leading to the articulation of migrant rights discourses.

b) Phase Two (1958-1995): This era witnessed the emergence of two contrasting phenomena. The first was the increasing competition between legal (documented) migrants and native-born citizens, a situation that intensified with the closure of coal mines in France and Belgium. The second was the growing desire of individuals in the Global South to migrate towards northern nations, which, feeling overwhelmed, resorted to border closures, disregarding the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families adopted in 1990, which failed to gain acceptance from any European state.

c) Phase Three (1995-Present): This phase emerged as a reaction from individuals in the Global South aspiring to live in Europe or determined to join the developed world

regardless of the cost or the means to reach affluent shores. Receiving nations responded by adopting stringent security policies, tightening the implementation of new immigration laws that included strict measures regarding family reunification and compelling southern nations to enter into agreements on the repatriation of irregular migrants. This phase was characterized by a dominant security approach, both domestically (laws to combat irregular migration) and bilaterally (cooperation and agreements between European and Maghreb nations, or between the European Union and Maghreb nations within the framework of partnership agreements). Receiving states focused their attention on the presence of individuals on their territories without their consent, regardless of whether the individual arrived directly from their country of origin or via another state (transit country), through legal or irregular entry points, and regardless of whether their intention was permanent or temporary residence. The defining factor for intervention became their unauthorized presence within the national borders⁴.

Notably, statistics released on July 14, 2021, indicate a significant increase in irregular migration towards Europe via the Mediterranean Sea, estimated at 58% compared to the same period in 2020. In the same context, the International Organization for Migration reported the deaths of at least 1141 individuals while attempting to cross to Europe by sea during the first half of 2021.

2.2. Source Countries:

Often characterized as developing nations, source countries are geographically dispersed across all continents, including China, the Philippines, Vietnam, and other Asian

countries; sub-Saharan African nations from Senegal to Burkina Faso, Mali, Niger, Chad; Maghreb countries in North Africa; Central American countries, Mexico, Brazil, Argentina, and Cuba in the Americas; and former Eastern Bloc European nations. Notably, this category also includes countries affected by the Arab Spring uprisings and those experiencing civil wars, such as Yemen, Syria, Iraq, Libya, and Somalia.

Despite their diverse continental locations and ideological, linguistic, and cultural affiliations, these nations face similar challenges and hardships, with their citizens grappling with comparable societal crises.

Economically, a primary concern is the alarming rise and prevalence of youth unemployment, a consequence of fluctuating development rates in their countries, many of which still heavily rely on agriculture and mining. These sectors offer precarious development due to the former's dependence on rainfall and the latter's susceptibility to international market conditions⁵.

Furthermore, **political factors**, a pervasive phenomenon in Third World nations, significantly contribute to irregular migration. Internal political instability, military coups, the absence of democracy, arbitrary arrests and trials, the imprisonment and detention of citizens, and the authoritarianism of political regimes, including the confiscation of freedoms, all serve as motivating and driving forces compelling individuals to flee precarious situations and seek refuge through irregular channels.⁶

More recently, a novel security strategy has emerged following the events of September 11, 2001. This strategy involves the enactment of counter-terrorism legislation,

the stringent amendment of immigration laws, and the implementation of enhanced external border control measures. Additionally, it includes the detention of irregular migrants on the premise that unauthorized entry constitutes a punishable offense under European national laws, the establishment of detention centers, and the exchange of field intelligence regarding irregular migration routes and entry points used by migrants heading towards the northern Mediterranean basin. It is pertinent to recall that the initial outlines of this strategy appeared in the 1995 Barcelona Declaration, which addressed the issue of migration within the framework of social, cultural, economic, and human partnership.

The inadequacy of this strategy stems from its primary focus on the manifestations and consequences of the problem, rather than addressing its underlying causes ⁷. Among these multifaceted causes, the repercussions of the Arab Spring and the substantial influx of Syrian, Libyan, and Tunisian youth towards Europe warrant particular attention.

2.3. Transit Countries:

These are countries geographically situated along the routes of irregular migrants, used as temporary stops or resting places where migrants can recuperate and gather funds to continue their journey towards destination countries. Often, the duration of these stays extends for some, and others may find residence appealing. During this time, both groups often resort to various forms of illegal employment, making them vulnerable to exploitation and human rights violations by specifically established criminal networks involved in human trafficking.

Algeria, for example, due to its vast territory and numerous unguarded borders, has experienced a significant increase in irregular migration since 2000. A large number of individuals seeking to migrate to Europe have entered its territory. In response to this serious phenomenon, Algeria has been compelled to adopt a series of appropriate legal measures and procedures to confront and mitigate it ⁸.

Given that these irregular migrants, arriving from various African and Middle Eastern Arab countries, possess diverse cultures and customs, in addition to their political, economic, and security challenges, negative impacts have begun to emerge within the previously harmonious Algerian society, affecting its social, educational, environmental, and particularly health aspects. Consequently, any transit country vulnerable to the scourge of irregular migration, such as Algeria, must safeguard its values and heritage, ensure the continuity of development, and strengthen its capacity to protect, develop, and enhance its political, social, and security capabilities at all external and internal levels, through all direct and indirect means and methods. This aims to overcome aspects of violence and develop areas of strength within a comprehensive preventive concept that takes into account all surrounding internal and international variables⁹.

However, these measures or forward-looking perspectives, if one can call them that, of weak states have clashed with the formidable force of globalization and its expansive reach at the expense of their resources. At a time when legal and physical barriers to the flow of capital, goods, and

services are being dismantled, the state faces security, cultural, and political anxieties and challenges¹⁰. Similarly, while international blocs expand among themselves, as is the case with European Union countries, barriers and restrictive immigration procedures are erected against those from outside these blocs. It is noteworthy that a key characteristic of globalization is the urgent need for migrants with basic skills to perform dangerous, low-income, temporary, seasonal, or undesirable jobs that non-migrants avoid.

European efforts to counter irregular migration have intensified, granting the right to use all available means and disregarding human rights, principles of freedom, democracy, and humanity, particularly after the events of 9/11/2001. This allowed for the enactment of numerous counter-terrorism laws, stricter amendments to immigration laws, and enhanced external border control measures.

Recognizing the negative dimensions and escalation of this phenomenon, both receiving and source countries, and especially transit countries, have begun to enact laws and establish mechanisms to combat and confront irregular migration and protect themselves from its economic, social, cultural, and particularly political and security repercussions. However, this has often been done unilaterally, particularly by the European side, which tends to engage with other countries from a position of power, while cooperation and collaborative work as integrated partners in effectively addressing irregular migration (by strengthening counter-trafficking mechanisms) would be more beneficial. What are these mechanisms and laws, and what are the local and regional

efforts in confronting this phenomenon? What is the position and role of the Algerian legislator in this regard?

3. International and Regional Efforts in Addressing the Phenomenon:

3.1. Arab-Arab Efforts:

Arab efforts to confront the phenomenon of irregular migration fall within the framework of Arab national security strategy, which is fundamentally based on the capacity of Arab states, both governments and peoples, to protect, develop, and enhance their political and social capabilities at all external and internal levels, through all direct and indirect means. This strategy aims to overcome areas of weakness and develop areas of strength within a comprehensive national security concept that takes into account all surrounding internal and international variables.

Therefore, the League of Arab States, established in 1945, has given special attention to the phenomenon of irregular migration. The ministers of these states responsible for migration convened to formulate a unified policy to confront the phenomenon and establish Arab partnership measures to regulate legal Arab migration and counter illegal intra-Arab migration. The meeting, held at the League's General Secretariat in Cairo on February 18-19, 2008, concluded with the formulation of recommendations that would serve as the basis for an Arab strategy to address migration issues and the Arab diaspora abroad.

These recommendations include:

- ✓ Establishing a council of Arab ministers concerned with migration affairs and Arab communities abroad.

- ✓ Tasking the General Secretariat with creating a joint mechanism to study and monitor the interrelationships between population, migration, development, and employment issues at the Arab national level.
- ✓ Calling upon the Arab Labour Organization to consider the possibility of establishing a special committee to monitor the conditions of Arab migrant workers abroad, protect their rights, and create an Arab network and information database for the labor market.
- ✓ Enhancing Arab coordination in international and multilateral forums related to migration.
- ✓ Strengthening the role of migrants and encouraging communication among themselves and with their home countries.
- ✓ Calling upon the General Union of Arab Chambers of Commerce, Industry, and Agriculture, and the Arab Businessmen Association to fund the establishment of an Arab center for migration research and Arab culture.

These recommendations indicate a trend among Arab states to recognize that security-based approaches alone are insufficient and must be complemented by attention to developmental aspects, with the participation of the private sector and civil society organizations within a framework of dialogue and understanding with European countries.

This demonstrates that Arab states have recognized the humanitarian, economic, and social dimensions of irregular migration and are striving to prevent the use of Arab

territories as transit points for migration to other countries¹¹.

3.2. Arab-International Efforts:

Given that irregular migration is a serious global phenomenon that has spread and expanded alarmingly to the point of threatening entire entities and societies at various levels, it urgently necessitates the development of a robust strategy to address the phenomenon and eradicate it at its roots, or at least curb its rapid growth. Among the most realistic and effective means are agreements, whether bilateral or regional

a) International Conventions Addressing Irregular Migration:

The Euro-Mediterranean Partnership represents one such international framework, although it is not the sole model of cooperation between Arab and European states. The Parliamentary Assembly of the Mediterranean, comprising parliaments of Mediterranean basin countries and some states with close ties to the region, adopted the Mediterranean Charter in Monaco in November 2008. This charter entrusted these states with the responsibility of fostering dialogue among parliaments to contribute to peace and development processes and to work towards preventing the widening of the poverty gap through the development of developmental projects¹².

Subsequently, the Barcelona Declaration, which included the League of Arab States, some Western nations, and certain African Union member states, was ratified at the Euro-Mediterranean Conference held on November 27-28, 1995. Accompanied by a work program mandating the implementation of its objectives and the respect for its principles through regional and multilateral

programs, it serves as a foundation for establishing a comprehensive partnership, particularly in the economic and financial spheres, aimed at building a shared zone of prosperity.

The declaration issued by the Conference of Interior Ministers of Western Mediterranean Countries, held in Venice in November 2009, outlined a series of practical measures to combat organized crime, terrorism, money laundering, and irregular migration. These measures include:

- Promoting legal migration per labor market supply and demand and the interests of both source and receiving countries, while respecting human rights.
- Simplifying visa issuance procedures for nationals of countries on both shores of the Mediterranean.
- Intensifying the exchange of information related to irregular migration and migrant smuggling.

Furthermore, several international conventions address issues related to migration, the most significant of which include:

- The International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families, adopted by the United Nations General Assembly in 1990. This convention covers economic, social, cultural, civil, and other rights. However, it has been criticized for overlooking the rights of individuals residing in a country without legal authorization, at least from a humanitarian perspective¹³.

- The Protocol against the Smuggling of Migrants by Land, Sea and Air, supplementing the United Nations Convention against Transnational Organized Crime in 2000. This protocol addresses the criminal liability of smugglers, criminalizes migrant smuggling activities, and, in Article 2, encourages enhanced cooperation among state parties to achieve this goal while protecting the rights of smuggled migrants. Article 3 defines migrant smuggling as the procurement, to obtain, directly or indirectly, a financial or other material benefit, of the illegal entry of a person into a State Party of which the person is not a national or a permanent resident.
- The Schengen Agreement, signed in Luxembourg in 1985 by three (3) countries, primarily members of the European Union, as well as non-member states such as Norway, Switzerland, and Ireland. The agreement's content stipulated the gradual abolition of checks on persons at internal borders. A supplementary agreement was concluded in 1990 to implement the first agreement and support it with compensatory legal measures for border procedures. The European Police Office (Europol), the law enforcement agency of the European Union, adopted the Schengen Information System to limit the entry of irregular migrants, facilitating the exchange of information among European national

security agencies in the field of combating irregular migration¹⁴.

- The Rabat Declaration: On July 13, 2006, approximately 60 African and European countries requested assistance from the United Nations High Commissioner for Refugees (UNHCR) to address the problem of irregular migration from Africa to Europe. This caused concern and unease for the UNHCR, as refugees fleeing for security and political reasons often intermingle with migrants on various journeys. Consequently, around 30 ministers from European countries and 27 African ministers agreed and issued the Rabat Declaration in the Kingdom of Morocco, emphasizing the need for cooperation in addressing the problem in a comprehensive and balanced manner while respecting the rights and dignity of both migrants and refugees and providing them with international protection¹⁵.

Participating countries at the time committed to the following:

- Addressing the problem of irregular migration in a comprehensive and balanced manner while respecting all rights and the dignity of migrants and refugees.
- Acknowledging the urgent need to provide international protection in line with the international obligations of participating states.
- Calling upon international organizations, including the UNHCR, to assist in the implementation of these recommendations and the ten

points put forth by the then High Commissioner for Refugees, António Guterres.

In this context, the European Commissioner for Justice, Franco Frattini, stated that the conference participants should attempt to agree on a collective action plan that also includes African countries of origin or transit for migrants heading towards Europe, as cooperation with them is necessary for any effort by receiving countries to return irregular migrants to their countries of origin. This includes cooperation to limit the flow of migrants through collaboration between source, transit, and destination countries.

These measures appear to align with the aforementioned Barcelona Declaration. However, the implementation of these measures and even the principles of the Barcelona Declaration diminished after the events of 9/11/2001. Europeans showed a tendency towards a security-focused approach and its intensification to limit irregular migration at the expense of human rights.

Consequently, a series of laws were enacted, such as counter-terrorism legislation and stricter amendments to immigration laws, along with stringent border control measures. As a result, the United States established the new Department of Homeland Security in 2004, transferring the authority to oversee immigration matters from the Department of Justice. The American judiciary aligned with these measures, with one federal court considering the leniency in applying immigration laws as a primary cause of the 9/11/2001 events.

The European Union adopted a similar security policy, influenced by the American security strategy, establishing the European

Border and Coast Guard Agency (FRONTEX) under the European Council decision of 2004, with operations commencing in 2005. The agency's role is to guard the external borders of the Union, particularly the Mediterranean coast. The importance of this agency lies in halting the flow of irregular migrants across the sea from North Africa to northern Mediterranean countries by training border guards, providing technical assistance for border protection, and enabling EU member states to coordinate joint operations for the return of irregular migrants to their countries of origin. This prompted irregular migrants to change their routes towards Europe through arduous paths along the borders of Eastern European countries and the former Soviet Union.

b) Bilateral Agreements to Combat Irregular Migration:

Bilateral agreements fall within the general framework of international and regional efforts in combating irregular migration and addressing its repercussions. In other words, they represent the utilization of bilateral diplomacy, typically occurring between receiving countries facing escalating problems with irregular migrants and source countries grappling with underdevelopment and extreme poverty, which have impacted infrastructure, eroded values and ethics, and weakened political, economic, social, and cultural systems, potentially leading to state collapse.

Bilateral agreements aim to return irregular migrants to their countries of origin, a process often referred to as resettlement¹⁶.

Several European Union countries have entered into bilateral agreements with

countries in the Middle East and North Africa. Examples include:

1. An agreement between Italy and Egypt, granting Egyptian authorities sufficient time to resettle their citizens, with Italy bearing all associated costs.
2. An agreement between Algeria and Italy, signed in Rome on February 24, 2000, and ratified by Presidential Decree 06/67 dated February 11, 2006. Under this agreement, irregular Algerian migrants were repatriated after verification of their nationalities¹⁷.
3. An agreement between Algeria and France, concluded on October 25, 2003.
4. An agreement between Algeria and Germany, signed in Bonn on February 14, 1997, and ratified by Presidential Decree 06/63 dated February 11, 2006.
5. An agreement between Algeria and Britain, signed in London on July 11, 2006, and ratified by Presidential Decree 06/467 dated December 11, 2006.
6. A protocol between Algeria and Spain, concluded on July 31, 2001, and ratified by Presidential Decree 03/476 dated December 6, 2006.
7. An agreement between Italy and the Libyan Jamahiriya, signed in July 2003, which was a memorandum of understanding that included the provision of monitoring equipment and resources to assist the Libyan government in combating irregular migration towards Italy¹⁸.

8. An agreement between Spain and Morocco, considered a model of successful agreements in the field of combating irregular migration, allowing for the seasonal employment of nine thousand (9,000) Moroccan workers for a maximum period of nine (9) months¹⁹.

4.National (Algerian) Efforts in Combating Irregular Migration:

Initially positioned geographically as a transit zone for irregular migrants heading towards Europe, Algeria has witnessed a gradual escalation of this phenomenon, posing a threat to its security, social stability, health, and primarily its economy. This has raised concerns among the highest authorities in the country, particularly as irregular migrants, benefiting from relatively benign treatment and the Algerian authorities' initial tolerance, have increasingly opted to reside in the country, transforming it into a destination rather than merely a transit point. This is evidenced by statistics reported by the Algerian Press Agency (APS) at 16:48 on Thursday, December 16, 2021, where the head of the Judicial Police Department of the National Gendarmerie Command revealed that Algeria recorded over 10,889 irregular migrants from African countries in 2021, compared to 5,825 African migrants apprehended in 2020. In the same context, between 2018 and 2020, a network trafficking migrants of various nationalities, comprising 1,285 individuals, was dismantled via land and sea routes²⁰.

Given the escalating situation across all levels, it became imperative for the state to investigate the various indicators associated

with this phenomenon and develop an appropriate counter-strategy.

Algeria, like other affected nations, has adopted several strategies, including security, economic, and legal approaches. This section will focus on the legal strategy.

Algeria began by analyzing the international legal framework and the various efforts undertaken by international actors to address the phenomenon, to develop a national vision that reflects the internal realities. Consequently, a series of measures were adopted, and a set of legal mechanisms were enacted to confront this phenomenon.

In response to the significant influx of increasing numbers of migrants, the Algerian state expedited changes to its legislation to address the imminent threat, through Law No. 08/11 dated July 2, 2008, concerning the conditions for the entry, residence, and movement of foreigners in the country, while taking into account international agreements and the principle of reciprocity. This law seeks to meet Algeria's needs and clarify the procedures for dealing with foreign nationals within a legal framework ²¹designed according to its desire to curb this influx.

Firstly, the concept of a foreigner was defined in Article 3: "A foreigner, within the meaning of this law, is any individual holding a nationality other than Algerian nationality, or who does not hold any nationality." Thus, under this law, a foreigner is any individual who has no connection to the Algerian state, no legal or political ties, and does not enjoy any rights of citizenship. It also considers as a foreigner any person who has no connection with any other state and does not possess any nationality.

Article 4 then specifies the conditions for the entry, residence, and movement of foreigners within Algerian territory, stating: "A foreigner is subject, concerning their entry into, residence in, and movement within Algerian territory, to the fulfillment of the procedures stipulated in this law and its subsequent provisions. Regarding their residence, a foreigner must possess a valid travel document and visa, as well as administrative permits where required. The minimum required validity period for the aforementioned travel document is six months. They must also prove sufficient means of subsistence for the duration of their stay in Algerian territory. While respecting the principle of reciprocity, a foreigner wishing to temporarily reside in Algerian territory is subject to the obligation to take out comprehensive travel insurance."

In this regard, Article 5 of the same law grants the Ministers of Interior and the Wali (Governor) the authority to prohibit a foreigner from entering Algerian territory for reasons related to public order, state security, or affecting the fundamental and diplomatic interests of the Algerian state. For the same reasons, the territorially competent Wali can immediately decide to prohibit a foreigner from entering Algerian territory.

According to Article 6 of Law No. 08/11, a resident foreigner is required to return their resident card to the Wilaya (province) that issued it and to leave the territory upon the expiry of the validity of the visa, residence card, or the legally authorized period of stay in Algerian territory.

Article 8 of the Algerian legislation sets the maximum authorized period of stay upon each entry into Algerian territory at 90 days.

Article 16 of the same law defines the concept of a resident foreigner and the conditions for obtaining a resident card. To prevent any circumvention, the legislator stipulated that the foreigner must genuinely intend to establish their residence effectively, permanently, and continuously, meaning that their residence should not be formal, intermittent, or fictitious; otherwise, they are not eligible for a resident card.

Article 18 addresses the possibility of a resident wishing to extend their stay in Algeria, requiring them to submit an extension request 15 days before the expiry of their visa. For students pursuing their studies in Algeria, their residency period is equal to the duration of their studies.

If a foreigner wishes to settle in Algeria for an indefinite period to engage in paid employment, a residence card is only issued upon proof of possession of a work permit, with the validity of the residence card being the same as the validity of the work permit, as stated in Article 17.

If a foreigner no longer meets one of the required conditions for residence and this is definitively established, Article 22 mandates the withdrawal of their residence card and a notice to leave the territory within 30 days from the date of notification, with the possibility of benefiting from an additional period not exceeding 15 days upon a reasoned request.

If the competent authorities determine that a resident foreigner engages in activities contrary to morals and public tranquility and threatens national interests, or if they are convicted of acts related to these activities, this foreigner is subject to the withdrawal of their residence card and is expelled

immediately upon completion of administrative and judicial procedures.

In addition to the aforementioned situations and changes that an irregular foreigner may undertake in an attempt to circumvent the law to obtain a residence card or Algerian nationality, Article 48 of the Algerian legislation enumerates the following cases of fraud:

- ✓ Entering into a mixed marriage solely to obtain a residence card, acquiring Algerian nationality, or enabling others to acquire it.
- ✓ The same applies to a foreigner who enters into a marriage with a foreign national for the same purpose. The penalty for both cases is imprisonment for two (2) to five (5) years and a fine of 50,000 to 500,000 Algerian Dinars.
- ✓ In the case where the offense is committed by an organized group, the Algerian legislator has increased the penalty to ten (10) years of imprisonment and a fine of 500,000 to 2,000,000 Algerian Dinars, with the total or partial confiscation of assets.

As a supplementary penalty for those convicted of one of the aforementioned offenses, natural persons are subject to a ban on residing in Algerian territory for a maximum period of five (5) years, as well as a ban on practicing the professional or social activity during which the offense was committed for a maximum period of five (5) years.

Finally, it is worth noting that in addition to the legal and legislative aspects, the Algerian state has not neglected other aspects and has been keen to address them, such as the security aspect and its various agencies, including the central investigation office

(F.B.R.I.C) for irregular migration, the regional investigation unit for irregular migration (G.G.F), coast guards, and border guards, as well as the economic aspect and especially the scientific field related to the phenomenon.

Thus, Algeria has fully engaged alongside European countries in confronting the phenomenon of irregular migration on both fronts, considering its role as both a transit and a destination country.

5.Conclusion:

Given that irregular migration is not a temporary or regional issue but has taken on serious and global dimensions, it represents one of the greatest challenges facing the world, particularly between North and South America, and between Asia and Africa on the one hand and Europe on the other. European countries have borne the brunt of the problem due to two main reasons: the European side's urgent need for migrants to stimulate economic growth and increase population due to the aging of its citizens and low birth rates, and the African and Asian side's facing the threat of starvation due to the near-total collapse of economic, social, cultural, and ethical spheres, not to mention the security and political instability that has plunged these societies into endless cycles of war.

Given the worsening situation and the lack of a clear vision for mitigating this phenomenon, affected countries have hastened to make greater efforts and demonstrate a genuine intention to find the necessary solutions to eliminate or at least relatively reduce the speed of spread and expansion of the phenomenon. This has led to the establishment of mechanisms and the conclusion of agreements, both international

and bilateral, and the involvement of international organizations and global committees concerned with international migration. However, these efforts remain limited and ineffective because they are temporary solutions that do not address the real causes and factors leading to the spread of this phenomenon, foremost among which are poverty, underdevelopment, and unemployment.

6. Bibliography:

1- Books:

1. Abdelaziz Al-Asfar, 2004, Combating Illegal Immigration, Naif Arab University for Security Sciences, Dar Hamed for Publishing and Distribution, Amman, Jordan.
2. Mohamed Fathi Eid, 2004, International Experiences in Combating Illegal Migration, Naif Arab University for Security Sciences, Academics for Publishing and Distribution, Amman, Jordan.
3. Hussein Khalil, 2007, Contemporary International Issues: A Study of Topics in the New World Order, 1st ed., Dar Al-Manhal Al-Lubnani, Beirut, Lebanon.
4. Othman Al-Hassan, 2008, Yasser Awad Karim, Irregular Migration and Crime, Naif Arab University for Security Sciences, Riyadh, Saudi Arabia.
5. Shaaban Hamdi, 2008, Irregular Migration: Necessity and Need, Security Media Center, Egypt.
6. Tarek Abdel Hamid Al-Shahawi, 2009, Irregular Migration: A Future Vision, University Thought House, Alexandria, Egypt.

7. Abdelkader Rezig Al-Mukhadmi, 2010, Migrant Competencies: Between the Reality of Exile and the Dream of Return, University Publications Office, Algeria.
8. Ezzat Mohamed Al-Shishini, 2014, International Treaties, Instruments, and Conventions in the Field of Combating Non-Sponsored Migration, Naif Arab University for Security Sciences, Academics for Publishing and Distribution, 1st ed., Amman, Jordan.
9. Amna Ahmadi Bouzina, 2014, International and Regional Efforts to Combat Irregular Migration, 1st ed., Ibn Nadim Publishing and Distribution, Algeria.

2- Theses:

1. Omar Mohamed Al-Tayeb, 1990, National Security of the Nile Valley and its Implications in the Military Sphere, Doctoral Dissertation in National Strategy Philosophy, Higher War College, Cairo, Egypt.
2. Faiza Berkan, 2012, Mechanisms for Confronting Illegal Migration, Master's Thesis in Law, Specialization in Criminology and Penology, Faculty of Law and Political Science, Hadj Lakhdar University, Batna, Algeria.

3- Articles:

1. Tarek Fath Allah Khod, 2003, Decisions on the Deportation of Foreigners and Judicial Oversight Thereof, Police Research Journal, Egypt.
2. Arab Parliament Magazine, Publications of the Arab Inter-

Parliamentary Union, Damascus, Syria, 2008.

3. Mohamed Reda Al-Tamimi, 2011, *Illegal Immigration Through National Legislation and International Conventions*, (Notebooks on Politics and Law), Kassadi Merbah University, Ouargla, Issue 4.

4- Interventions:

1. Farida Belgharaf, 2009, *Arab-African Communities in the Diaspora and the Issue of Identity*, Intervention presented at the Fourth National Conference on Irregular Migration: A New Problem for Law, Faculty of Law and Political Science, Larbi Ben M'hidi University, Oum El Bouaghi, Algeria.
2. Lahrech Abdelrahman, 2011, *Combating Illegal Migration Towards Europe*, at the National Conference on Partnership Agreements between the European Union and Maghreb Countries, Maghreb Legal Studies Laboratory, Faculty of Law and Political Science, Badji Mokhtar University, Annaba, Algeria.
3. Reda Hameesi, 2015, *Mechanisms for Combating Irregular Migration in Algerian Legislation*, Scientific Seminar on Irregular Migration: Security and Humanitarian Dimensions, Kingdom of Morocco.

5- Legal Materials:

1. Law No. 08/11 dated February 25, 2008, concerning the conditions for the entry, residence, and movement of foreigners in Algeria, Official Gazette No. 36, dated July 2, 2008.

¹ Ahmed Abdel Aziz Al-Asfar, *Combating Illegal Immigration*, Naif Arab University for Security Sciences, Dar Hamed for Publishing and Distribution, Amman, Jordan, 2004, p. 7.

² Othhman Al-Hassan, Yasser Awad Karim, *Irregular Migration and Crime*, Naif Arab University for Security Sciences, Riyadh, Saudi Arabia, 2008.

Tarek Abdel Hamid Al-Shaarawi, *Irregular³ Migration: A Future Vision*, University Thought House, Alexandria, Egypt, 2009, p. 36.

⁴ Tarek Fath Al-Akhdar, *Decisions on the Deportation of Foreigners: Judicial Oversight*, Police Research Journal, Egypt, 2003, p. 31.

⁵ Hassan Khalil, *Contemporary International Issues: A Study of Topics in the New World Order*, 1st ed., Al-Manhal Al-Lubnani House, Beirut, Lebanon, 2007, p. 424

⁶ Shaaban Hamdi, *Irregular Migration: Necessity and Need*, Security Media Center, Arab Republic of Egypt, 2008, p. 5.

Lahrech Abdelrahman, *Combating Irregular⁷ Migration Towards Europe*, Intervention at the National Conference on Partnership Agreements between the European Union and Maghreb Countries, Maghreb Legal Studies Laboratory, Faculty of Law and Political Science, Badji Mokhtar University, Annaba, Algeria, 2011, p. 3.

⁸ Reda Hemissi, *Mechanisms for Combating Irregular Migration in Algerian Legislation*, Scientific Seminar on Irregular Migration: Security and Humanitarian Dimensions, Western Kingdom, February 5-6, 2015, p. 1.

⁹ Omar Mohamed Al-Tayeb, *National Security of the Nile Valley and its Implications in the Military Sphere*, Doctoral Dissertation in National Strategy Philosophy, Higher War College, Cairo, Egypt, 1990, p. 10.

Abdelkader Rezig Al-Mukhadmi, *Migrant¹⁰ Competencies: From the Reality of Exile to the Dream of Return*, University Publications Office, Algeria, 2010, p. 97.

¹¹ Mohamed Fathi Eid, *International Experiences in Combating Non-Sponsored Migration*, Naif Arab University for Security Sciences, Academics for Publishing and Distribution, Amman, Jordan, 2004, p. 80.

¹² *Arab Parliament Magazine*, Year 29, Publications of the Arab Inter-Parliamentary Union, Damascus, Syria, 2008, Issue 108.

¹³ Mohamed Reda Al-Tamimi, *Illegal Immigration Through National Legislation and International Conventions*, Notebooks on Politics and Law, Kassadi Merbah University of Ouargla, Issue 4, January 2011, p. 267.

¹⁴ Farida Belgharaf, *Arab-African Communities in the Diaspora and the Issue of Identity*, Intervention presented at the Fourth National Conference on Irregular Migration: A New Problem for Law, Faculty of Law and Political Science, Larbi Ben M'hidi University, Oum El Bouaghi, Algeria, April 19-20, 2009, p. 35.

¹⁵ Ezzat Mohamed Al-Shishini, *International Treaties, Instruments, and Conventions in the Field of Combating Irregular Migration*, Naif Arab University for Security Sciences, Academics for Publishing and Distribution, 1st ed., Amman, Jordan, 2014, p. 152.

¹⁶ Faiza Berkan, *Mechanisms for Confronting Irregular Migration*, Master's Thesis in Law, Specialization in Criminology and Penology, Faculty of Law and Political Science, Hadj Lakhdar University, Batna, Algeria, 2012, p. 100

¹⁷ Amna Ahmadi Bouzina, *International and Regional Efforts to Combat Irregular Migration*, 1st ed., Ibn Nadim Publishing and Distribution, Algeria, 2014, p. 254.

¹⁸ Ezzat Mohamed Al-Shishini, *Previous Reference*, p. 155.

¹⁹ *Ibid.*, p. 155.

²⁰ Algerian Press Agency.

²¹ Law No. 08/11 dated February 25, 2008, concerning the conditions for the entry, residence, and movement of foreigners in Algeria, Official Gazette No. 36, dated July 2, 2008.